

**UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF MINNESOTA**

JOSEPH KIRCHNER,

Plaintiff,

v.

KEITH ELLISON, in his official
capacity as Attorney General of the
State of Minnesota,

Defendant.

Case No. 26-CV-2594 (LMP/DJF)

**PLAINTIFF'S MEMORANDUM OF
LAW IN SUPPORT OF MOTION FOR
LEAVE TO FILE A SURREPLY**

INTRODUCTION

Local Rule 7.1 closes motion briefing with the reply, and LR 7.1(i) forbids further memoranda "[e]xcept with the court's prior permission." Plaintiff asks that permission for a surreply of no more than 1,200 words, lodged with the motion as Exhibit 1. The request is unusual in one respect that Plaintiff states plainly at the outset: the surreply's first and principal purpose is to correct *Plaintiff's own* Complaint. Defendant's Reply pointed out that phrases the Complaint sets in quotation marks do not appear in the Minnesota statute they are attributed to. (Doc. 16 at 3–4.) On that narrow point the Reply is right, and the correction should come from Plaintiff, on the record, without waiting to be asked.

ARGUMENT

I. The Court's Permission is Warranted to Receive a Correction of the Record.

A surreply is appropriate where a reply raises matters the responding party had no prior opportunity to address, or where the record before the Court would otherwise stand

uncorrected. Both are true here, and the motion will be decided on the papers (Doc. 10) — there is no hearing at which any of this could be addressed.

First, the correction of Plaintiff's own pleading. Complaint ¶¶ 24, 39, and 41 attribute quoted phrases to Minn. Stat. § 8.06 that do not appear in that section; ¶ 40 attributes the phrase "original jurisdiction" to Minn. Stat. § 388.051, which also does not contain it; and ¶ 36's quotation of Section 8.31, subdivision 2 closes in paraphrase — the latter two being instances the Reply did not identify, which Plaintiff discloses and corrects on his own initiative after re-verifying every quotation in the Complaint against its source. The quoted phrases derive from the fifty-state comparative record filed with the Complaint as Exhibit B, which documents them in the laws of other states (Ala. Code § 36-15-21; La. Const. art. IV, § 8; the Colorado Attorney General's official statements). The proposed surreply withdraws the Minnesota attributions, conforms two non-quotation recitals (¶¶ 37, 50) to the sources they cite, and sets out the verbatim Minnesota texts — §§ 8.01, 8.06, 8.31, subds. 1–2, and 299C.061, subd. 4(c) — on which the affected propositions actually rest. A party who finds citation errors in his own pleading after briefing has closed has two choices: leave the record wrong, or ask leave to correct it. Plaintiff asks leave.

In the parties' conferral, Defendant's counsel opposed this motion, stating that "the proper avenue" for these corrections "is with a letter to the Court, not a surreply." (See Meet-and-Confer Statement.) Plaintiff respectfully disagrees. A substantive correction of quotations in a pleading, and of characterizations in a reply, is memorandum material: LR 7.1(i) forbids such submissions without the Court's prior permission, and the Court's

Practice Pointers and Preferences contemplate letter submissions in two situations — permission to file an early summary-judgment motion and supplemental authority — neither of which this is. Plaintiff declines to place substance before the Court in a form the rules do not authorize, and asks permission instead. Counsel's response also acknowledged "the incorrect record citations in my reply brief" and stated that Defendant "will file a correction with the Court" — confirming that the record needs correction and narrowing the parties' dispute to the vehicle.

Events the same day answered the vehicle question. After stating that position, Defendant filed his corrections not by letter but as a second reply memorandum (Doc. 17), accompanied by a new word-count certificate (Doc. 17-1), without seeking the Court's prior permission. Plaintiff takes no issue with the corrections themselves — they confirm the Reply required correcting. But LR 7.1(i)'s permission requirement applies to both parties. Plaintiff's corrections come by this motion because that is what the rule provides.

Second, the Reply's own characterizations warrant response. The Reply attributes the misquotation to "Doc 15, p. 20" (Doc. 16 at 4) — but page 20 of Plaintiff's opposition quotes Section 8.06 verbatim. It states that Plaintiff cited *Heckler v. Chaney*, 470 U.S. 821 (1985), for "the opposite of *Heckler*'s holding" (Doc. 16 at 6), where Plaintiff's opposition cited *Heckler* with a "*cf.*" signal for the exception expressly reserved at 470 U.S. at 832–33 & n.4. It cites the prior action by a case number ("26-cv-00723") that belongs to no case between these parties — *Kirchner I* is No. 0:26-cv-00726-PJS-ECW — and twice cites "Doc. 19," a docket entry that does not exist in this action. And its

footnote 1 places the Eighth Circuit's summary affirmance before the Court for the first time in this briefing. Plaintiff had no opportunity to address any of this: under LR 7.1, the reply is the last word unless the Court permits otherwise.

II. This Request is Narrow and Prejudices No One.

The proposed surreply is capped at 1,200 words, makes no new argument for relief, and is submitted with the motion so the Court can see the entirety of what leave would permit. No deadline is affected; the motion to dismiss remains under advisement on the existing papers. Plaintiff does not oppose the Court affording Defendant a short response if the Court considers one useful. The alternative — leaving the record with an uncorrected error in the Complaint and unanswered mischaracterizations in the Reply — serves no one, least of all the Court.

CONCLUSION

Plaintiff respectfully requests that the Court grant leave to file the surreply lodged as Exhibit 1 and deem it filed as of the date of the Court's order.

Respectfully submitted,

/s/ Joseph Kirchner
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